

Zakaat - كتاب الزكاة

- **Zakaat linguistic definition**

- 'نماء' - growth, the object you have grows itself
- بركة - blessed, money stretches farther
- زيادة - increase, the number of the object increases
- طهارة - purity, zakat purifies your wealth and the person

- **Zakat technical definition**

- تملك مال مخصوص لمستحقة بشروط مخصوصة - Transferring ownership of specific wealth to a deserving recipient under specific conditions.

- **Conditions of Zakaat becoming Fard**

1. *Islam*
2. *Freedom*
3. *Maturity*
4. *Sanity*
5. *Full ownership*
6. *Nisab threshold*
7. *Wealth of outside debt*
8. *Wealth that grows*

- **When does it become mandatory to pay zakat**

- After owning nisab for a full lunar year - if you are under nisab on that day that you pay zakat then you don't pay it.

- **When is giving zakat valid?**

- **With the proper intention of zakat** - examples are below
- Must be given w the intention of Zakat at the moment of giving, not after.
- Alleviating debt/telling them to not pay you back is not zakat.
- Someone who donates all their wealth in sadaqa doesn't pay zakat.

- **Nisab**

- Nisab of gold - 87 grams
- Nisab of silver - 612 grams
- 1/40th of your wealth = 2.5%
- Mixed gold - if it's 51% gold or silver, it's gold or silver

- **Women's jewelry**

- Hanafis say pay zakat on it, 3 other mathahib say you don't have to
- Better to pay on it

- **Zakat al 'Urud (items)**

- Zakat on anything that's not an asset, money, livestock, etc.
- 2 conditions to pay on these items
 - You have the intention of doing business with the object
 - The value of the item is more than nisab
- What is a business good? Anything that you buy with the intention of selling it, whether that intention starts when you buy it or later on.

- **Zakat Al Dayn**

- The Lender
 - 2 hanafi opinions
 - 3 types of debt - strong, middle, and weak
 - Lender pays zakat on the money they lent once it's recieved
 - Pay on whatever is in your hand and if nothing is in your hand then pay zakat on the money you get back on the end retroactively.
 - Imam Shafi - Anything that you have hope in getting it back is a loan. Something you should pay zakat on whether or not you received it
- The Ower
 - Long term loans - anything that you owe in over a year
 - You can deduct immediate expenses - monthly necessary bills
 - Rules of deduciton are permissible, but it's not encouraged

- **Zakat on things that are lost زكاة مال الضمار**

- Money that you own but is impossible to access - not in your possession
- The moment you lose the money or someone stole you don't have to pay it. If you gain it back then you start paying on it again, but not retroactively.

- **Who receives Zakat**

1. لِلْفُقَرَاءِ - anyone who owns less than nisab, even if they are able to earn
2. الْمَسْكِينِ - people who don't own anything at all
3. الْعَمِلِينَ عَلَيْهَا - Organizations that only distribute zakaat, no other sadaqa
4. الْمُؤَلَّفَةِ قُلُوبُهُمْ - Non Muslims to encourage them to accept Islam
 - a. Imam Shafii - there's other forms, can give it if they're Muslim
 - b. Imam Malik/Ahmad - it exists in its full form
 - c. In modern day, majority of ulamaa would say this doesnt exist
5. فِي الرِّقَابِ - slaves looking to buy their freedom
6. الْغَرَمِينَ - someone in (immediate) debt

7. فِي سَبِيلِ اللَّهِ - most common tafsirs are in hajj and jihad
 8. آئِنِ السَّبِيلِ - a poor traveller, traveling for any reason
 - You can give a little bit to each category, or can give all zakat to one category. Imam Shafii' says it should be distributed across the categories.
 - Imam Shafi/Ahmad flip the definitions of miskeen and faqeer
- **People who can't receive zakat**
 - Non muslims
 - The rich (above nisab)
 - A rich child
 - Family of the Prophet SAW (tribe of Bani Hashem)
 - Your parents or their parents
 - Your children or their children
 - A husband on his wife
 - To build anything
 - To shroud a deceased person